

NOTES AND QUERIES:

A MEDIUM OF INTER-COMMUNICATION

FOR

LITERARY MEN, ARTISTS, ANTIQUARIES, GENEALOGISTS, ETC.

"When found, make a note of." — CAPTAIN CUTTLE.

VOL. IV.—No. 98.] SATURDAY, SEPTEMBER 13. 1851.

{ Price Threepence.
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Notes.

MADRIGALS IN PRAISE OF QUEEN ELIZABETH.

At the close of the reign of Queen Elizabeth, a musical work of an extraordinary character issued from the press of that industrious printer Thomas Este, the history of which it will be my endeavour to elucidate in the present communication. The title-page runs as follows:—

"MADRIGALES. THE TRIUMPHES OF ORIANA, to 5 and 6 voices: composed by divers severall authours. Newly published by Thomas Morley, Batcheler of Musick, and one of the gentlemen of hir Majesties honorable Chappell, 1601. In London, Printed by Thomas Este, the assigne of Thomas Morley. *Cum privilegio Regiæ Majestatis.*"

The dedication is addressed—

"To the Right Honorable the Lord Charles Howard, Earle of Notingham, Baron of Effingham, Knight of the Noble order of the Garter, Lord High Admirall of England, Ireland, and Wales, &c., and one of her Majesties most honorable Privie Counsell."

As all that is known, with *certainty*, of the *origin* of this work consists in the title-page and the dedication, I shall make no apology for quoting the latter at length:—

"Right Honorable,

"I have adventured to dedicate these few discordant tunes to be censured by the ingenious disposition of your Lordship's Honorable rare perfection, perswading my selfe, that these labours, composed by me and others (as in the survey hereof, your Lordship may well perceive), may not by any meanes passe, without the malignitie of some malicious *Momus*, whose malice (being as toothsome as the *adder's* sting), couched in the progres of a wayfayring man's passage, might make him retire though almost at his journeyes end. Two speciall motives have imbouldened me (Right Honorable) in this my proceeding. First, for that I consider, that as the body cannot bee without the shadow, so *Homer* (the Prince of Poets) may not be without a Zoilist: The second and last is (the most forcible motive), I know (not onely by report, but also by experiment) your Lordship to bee not onely *Philomusus*, a lover of the *Muses*, and of learning; but *Philomathes*, a personage always desirous (though in all Arts sufficiently skilfull) to come to a more high perfection or *Summum bonum*. I will not trouble your Lordship with to to [*sic*] tedious circumstances, onely I humbly intreat your Lordship (in the name of many) to patronage this work with no lesse acceptance, then I with a willing and kinde hart dedicate it. So shall I think the *initium* of this worke not onely happely begun, but to bee *finited* with a more happie period.

"Your Honour's devoted in all dutie,

"THOMAS MORELY."

The Triumphs of Oriana consists of twenty-five madrigals, set by the most eminent musicians of the day, and edited (as the title-page and dedication show) by Thomas Morley, a most "rare and cunning musician," and moreover an especial favourite with the reigning queen, in whose honour the work is said to have been composed.

Sir John Hawkins, in his *History of Music*, vol. iii. p. 406., says the "occasion" of the publication of *The Triumphs of Oriana* was this:

"The Lord High Admiral, Charles Howard, Earl of Nottingham, was the only person, who, in the last illness of Elizabeth, could prevail on her to go into and remain in her bed; and with a view to alleviate her concern for the execution of the Earl of Essex, he gave for a prize-subject to the poets and musicians of the time, the beauty and accomplishments of his royal mistress, and by a liberal reward, excited them severally to the composition of this work. This supposition is favoured by the circumstance of its being dedicated to the Earl, and the time of its publication, which was the very year that Essex was beheaded. There is some piece of secret history which we have yet to learn, that would enable us to account for giving the Queen this romantic name; probably she was fond of it. Camden relates that a Spanish ambassador had libelled her by the name of *Amadis Oriana*, and for his insolence was put under a guard."

Dr. Burney, in his sketch of the Life of Thomas Morley (*General History of Music*, vol. iii. p. 101.), speaking of this work, says,

"As Italy gave the ton to the rest of Europe, but particularly to England, in all the fine arts, during the reign of Queen Elizabeth, it seems as if the idea of employing all the best composers in the kingdom to set the songs in *The Triumphs of Oriana* to music, in honour of our virgin queen, had been suggested to Morley and his patron, the Earl of Nottingham, by Padre Giovenale, afterwards Bishop of Saluzzo, who employed thirty-seven of the most renowned Italian composers to set *Canzonetti* in honour of the Virgin Mary, published under the following title: *Tempio Armonico della Beatissima Virgine nostra Signora, fabbricatole per opera del Reverendo P. Giovenale, A. P. della Congregatione dell' Oratorio. Prima Parte, a tre voci, Stampata in Roma da Nicola Mutii, 1599, in 4to.*"

That by *Oriana* is meant Queen Elizabeth, there can be but little doubt. The appellation surely does not countenance the supposition that there "must be some secret piece of history" in the case. Queen Elizabeth, we all know, was a woman of inordinate vanity. Even at the age of three score and ten she delighted in the names of *Cynthia*, *Diana*, and such like; and *Oriana*, who was the heroine of the well-known romance *Amadis de Gaul*, and a lovely and virtuous woman to boot, could not fail to gratify her. How D'Espes, the Spanish ambassador, could libel her under the double title of *Amadis Oriana*, it is difficult to imagine; but so it was, according to Camden (anno 1569). "*Libellos famosos spargit, in quibus Reginae existimationem contumeliosè atterit sub nomine Amadis Orianae.*"

The pretty sounding tale related by Sir John Hawkins, that the work in question was undertaken with a view to alleviate the grief of the queen for the death of the Earl of Essex, and that prizes were given by the Earl of Nottingham for the best composition for that purpose, is entirely without foundation. Sir John Hawkins gives no authority for his statement, and I believe it rests entirely upon conjecture.

The Triumphs of Oriana (as we have seen) was printed at London in the year 1601. In the same year was published at Antwerp a collection of madrigals with the following title: *Il Trionfo di Dori, descritto da diversa, et posti in Musica, da altretranti Autori a Sei Voci, In Anversa, Appresso Pietro Phalesio, 1601*. From the date of these two collections, it appears almost impossible that either should have been an imitation of the other; and yet, by an extraordinary similarity in point of *style, number,*

variety of composers, and burthen of the poetry, there can be but little doubt such was the case. The point will be therefore to ascertain if either of these works was printed previously to this date, 1601. I have no doubt that the *Orianas* is the first and only edition of the work. On the other hand, there is good reason (from a variety of circumstances) to suppose that the copy of *Il Trionfo di Dori* with this date will turn out to be the *second* edition.

The poetry (if such it can be called) of the *Orianas* is a paraphrase of *Il Trionfo di Dori*. The Italian burden or conclusion is always—

"Cantiam Ninfe e Pastori
Viva la bella Dori."

And the English version:

"Then sang the shepherds and nymphs of Diana,
Long live faire Oriana."

Mr. Oliphant, in his collection of poetry entitled *La Musa Madrigalesca*, is perhaps not far wrong when he says that the rhymes of the *Orianas* would "disgrace the veriest tyro in Grub Street;" but, nevertheless, I have extracted a few specimens, premising that they are the best I could find among the "twenty-five":—

1.

"Hence! stars, too dim of light;
You dazle but the sight;
You teach to grope by night;
 See here the shepherd's star,
 Excelling you so far.
Then Phœbus wiped his eies,
And Zephyrus cleer'd the skies.
In sweet accented cries,
 Then sang the shepherds and nymphs of Diana,
 Long live fair Oriana."

2.

"All creatures now are merry-minded,
 The shepherds' daughters playing,
 The nimphes are fa-la-la-ing;
Yond bugle was well-winded.
 At Oriana's presence each thing smileth,
The flowres themselves discover,
Birds over her do hover,
 Musick the time beguileth.
See where she comes, with flow'ry garlands crowned;
Queene of all Queenes renowned:

Then sang the shepherds and nymphs of Diana,
Long live faire Oriana."

3.

"Thus *Bonny-bootes* the birthday celebrated
Of hir his Lady dearest;
Fair Oriana, which to his hart was neerest.
The nymphs and shepherds feasted
With clowted creame, and to sing were requested.
Loe! here the fair, created
(Quoth he) the world's chiefe goddesses.
Sing then, for she is *Bonny-bootes'* sweet mistres.
Then sang the shepherds and nymphs of Diana,
Long live faire Oriana."

4.

"Come blessed bird! and with thy sugred rellish,
Help our declining quire not to embellish;
For *Bonny-bootes* that so aloft would fetch it,
Oh! he is dead, and none of us can reach it!
Then tune to us, sweet bird, thy shrill recorder,
And I, Elpin and Dorus,
For fault of better, will serve in the chorus.
Begin; and we will follow thee in order.
Then sang the wood-born minstrel of Diana,
Long live faire Oriana."

Now a question arises, who was the *Bonny-boots* mentioned in the two last-quoted madrigals?

Sir John Hawkins has the following hypothesis:

"Bonny-boots seems to be a nick-name for some famous singer, who, because of his excellent voice, or for some other reason, had the permission to call the queen his lady. Possibly the person meant might be one Mr. Hale, of whom mention is made by Sir William Segar, in his account of a solemn tilt, or exercise of arms, held in the year 1590 before Queen Elizabeth, in the Tiltyard at Westminster, with emblematical representations and music, in which the above-mentioned Mr. Hale performed a part, by singing a song, &c. Sir William Segar also says of this person, that he was her majesty's servant, a gentleman in that art excellent, and for his voice both commendable and admirable."—*Hist. of Music*, vol. iii. p. 406.

Some gallant, high in favour with the Lady Oriana (Queen Elizabeth), is evidently alluded to in these madrigals; but I cannot agree with Sir John Hawkins, that a public singer like Mr. Hale would be permitted "to call the queen his lady." The idea is too absurd for a moment's consideration. Another conjecture is, that the individual designated *Bonny-boots* was the Earl of Essex; but I shall here quote

two extracts from a curious and rare work published by Thomas Morley in 1597, and entitled "*Canzonets, or Little Short Aers to Five and Six Voices*: Printed by Peter Short," &c.:—

1.

"Fly love, that art so sprightly,
To *Bonny-boots* uprightly;
And when in Heav'n you meet him,
Say that I kindly greet him;
And that his Oriana,
True widow maid still followeth Diana."

2.

"Our *Bonny-boots* could toot it, yea and foot it;
Say lusty lads, who now shall bonny-boot it?
Who but the jolly shepherd, bonny Dorus?
He now must lead the Morris dance before us."

The conjecture that *Bonny-boots* was the Earl of Essex at once falls to the ground; for he was not beheaded till 1601, and the title-page of Morley's *Canzonets* bears date 1597.

That some conceit relative to the Lady Oriana existed long before the appearance of *The Triumphs*, is evident. Although the latter work was not published till the year 1601, yet in 1597 the idea had been acted upon by Nicholas Yonge in his *Second Book of Musica Transalpina*; for therein is the well-known madrigal by Giovanni Croce from *Il Trionfo di Dori*, adapted to the English words, "Hard by a crystal fountain," and ending with the burden, "Long live fair Oriana." Dr. Burney (*Hist. of Music*, vol. iii. p. 124.) says, that according to Hearne, a madrigal beginning with these words used annually to be sung by the fellows of the New College, Oxon, but he was unable to find it. Other madrigals in praise of Oriana may be found in Bateson's *First Set of Madrigales*, 1604; Pilkington's *First Set of Madrigales*, 1613; and in Vautor's *First Set of Songes*, 1619.

The publication of madrigals in praise of Queen Elizabeth, after her death, may be easily accounted for. They were (it is evident upon examination) originally composed with the others, but sent too late for insertion in the set; after which their respective composers had no opportunity of publishing them until the dates above given.

The conclusion then I arrive at is this, that *Il Trionfo di Dori* was printed in Italy (most probably at Rome) between the years 1588 and 1597; that N. Yonge procured a copy of it from thence (as may be inferred from his Preface), and from it published Croce's madrigal. This copy was most probably seen by Thomas Morley, and gave him the idea of his *Triumphs of Oriana*. Morley was at this time an especial favourite with the queen, who had recently rewarded him with "a faire gold chaine." An offering then like the *Orianas* could not fail of being acceptable to the vanity of Elizabeth, who, even at the age of sixty-eight, was extremely susceptible of flattery—especially when directed towards her person. It doubtless had the desired effect, and secured for Morley the patronage of the queen and the principal nobility. The publication of this work is thus easily explained without the intervention of any "secret piece of history."

MS. NOTES IN A COPY OF LIBER SENTENTIARUM.

As MS. notes in old books have been regarded as fit matter for this journal, I would contribute two or three from a copy of Peter Lombard's *Book of Sentences*, printed at Vienna in 1477. This has not only passed through divers hands before it came into mine, but several previous owners have left their names in it, and one of them very numerous marginal comments. Of these the earliest appears to have been Thomas Wallwell or T. Swallwell, a monk of Durham, who, from the handwriting, which is of the fifteenth century, I conclude was the marginal commentator. He has availed himself of the "Laus Deo" below the colophon to add "q' Ts. Wallwell monachus ecclesiæ cathedralis Dunelmensis." The words are abbreviated, but I have given them at length except the first, which, instead of being a *q*, with a comma, is a *q* with an oblique line through it, that I thought might baffle the printer. The comments are very scholastic, and such as would then have been considered much to the purpose. It is possible some reader of this journal may be able to supply information respecting this erudite monk.

The next owner, judging by the handwriting, which seems little, if at all, later than 1500, has thus recorded his ownership on the blank side of the last leaf:

"Istius libri verus est possessor dominus Stephanus Merleye."

He was probably a priest, but I have discovered no annotations by him; though, as there is scarcely a page without writing on it, there may be some.

However, the note to which I would more particularly invite attention is at the top of the first page, and in the handwriting, I think, of the above-mentioned monk. It is in abbreviated Latin, but read in extenso it runs thus:

"Sententiæ Petri Lombardi fratris Graciani qui decretum compilavit, et etiam Petri Comestoris, qui scholasticam historiam edidit et alia. Iste Petrus Lombardus fecit istud opus, edidit glossas psalterii et Epistolarum et plura alia. Fuit etiam episcopus Parisiensis. Isti tres fratres uterini erant, et floruerunt anno salutis 1154, qui fuit annus ab origine mundi 6353."

Over the word Graciani is interlined "monachi" in the same hand. In this statement two things are remarkable:—1. The allegation that these three well-known writers of the twelfth century were uterine brothers. 2. The mundane era. The former is hardly reconcilable with the generally received account of them, but it is not altogether new. Cave, writing of Gratian, adverts to a story of their having been brothers in the following words:

"Non desunt plurimi qui Gratianum, Petri Lombardi, Petrique Comestoris germanum fuisse volunt, matremque tergeminos hos fratres ex furtivo concubitu conceptos uno partu edidisse, quod quidem nullo satis gravis auctoris testimonio fulcitur."—*Scriptores Eccl.*, vol. ii. p. 216.

I am not going to advocate this story, for it is most likely false; and the monk's statement may not be correct; but as it is less improbable, it may be worth recording. Peter Lombard died in 1164. Gratian completed the Decretum about 1151, and probably survived some years, but I have not met with the date of his death. Peter Comestor died in 1198. They may therefore have all been contemporaries, though the last must have lived to a good old age, unless he were considerably younger than the others.

With regard to the mundane era by which the writer computed, it will be found to differ materially, not only from that now in common use among ourselves, but also from all that are mentioned by Sir H. Nicolas in his *Chronology of History*; for it assumes the Nativity to have occurred in the year of the world 5199. This, however, agrees with what appears to have been recognised as the era of the

creation by the western churches from about the beginning of the fifth century (see De Vaine's *Dictionnaire Raisonné de Diplomatie*, voce *Comput*), though from some cause it seems to have been almost overlooked by modern writers in this country.

I have not attempted to explain the "q" before Ts. Wallwell. It may have meant "quoeth," or "quæsit;" but I am not satisfied with anything that has occurred to me. It stands thus:

"*Laus Deo. q; TsWallwell*

Mo^{cs} ecclē cathedralis dunelm."

"Ts." for Thomas is not usual, but those are clearly the letters: I have tried to read the "s" (which may have been meant for a capital) with the surname, but Swallwell is a stranger cognomen than that I have attributed to the monk. Some correspondent conversant with Durham may possibly recognise the name in one of its forms.

W. S. W.

Temple.

CLASSIFICATION OF LITERARY DIFFICULTIES.

Whatever may be the utility of your publication as a source of information to individuals, each on his own point of difficulty, there is a purpose, and one of its greatest ultimate purposes, which it must one day answer, though not immediately—I mean the furnishing of materials for general conclusions on the *difficulties of literature*. The queries which are sent to you are those which an author must put to himself in his closet; the manner in which others help him shows the manner in which he ought, if he could, to help himself. Occasionally, the querist betrays a want of power to reduce his own difficulty to its proper category; occasionally, also, the respondent fails to grapple with the real point. All this is instructive, and reconciles those who are instructed by it to the presence of many things which seem trivial or out of place to those who do not consider the nature of the whole undertaking. But the instruction I speak of will be much augmented in quantity and elevated in character, if ever the time should come when the mass of materials collected finds an architect to arrange it. The classification of the obstacles which an inquirer meets with, so treated as to give a view of the *causes* of difficulty as they arise, both from the state of our books, and of our modes of using them, must surely one day suggest itself as a practicable result of the "NOTES AND QUERIES." The more this result is insisted on the more likely is it to be realised; and though it may need twenty volumes of the work to be completed, or even more, before anything can be done, the mere suggestion may induce some of your readers to keep an eye upon your pages with a view to something beyond current matter.

M.

Minor Notes.

Meaning of "Ruell."

—In the "Rhyme of Sir Thopas" Chaucer says:

"His sadell was of *ruell* bone

His bridle as the sun yshone," &c.

Translated by Z. A. Z.:

"His saddle was of jit black bone."

Whitaker and Co. London, 1841.

Tyrwhitt says:

"His sadel was of *rewel* bone."

What kind of material this was, I profess myself quite ignorant.

"In the *Turnament of Tottenham*, ver. 75. (*Anc. Poet.*, vol. ii. p. 18.), Tibbe is introduced with 'a garland on her head full of *ruell* bones.' The derivation in Gloss. Urr. of this word from the French *riolé*, diversely coloured, has not the least probability. The other, which deduces it from the French *rouelle*, *rotula*, the whirl-bone or knee-pan, is more plausible; though, as the glossarist observes, that sense will hardly suit here."—Chaucer, by Thomas Tyrwhitt, Esq. Pickering: London, 1830.

"His saddle was of *ruel* bone."

Chaucer, by Thomas Speght.
London, 1687.

And its Glossary says:

"RUELL BONE, *f.* of the French word *riolé*, that is, diversely colored: an Antistæcon in many words derived from another language; as, in *Law* from *Loy*, and *Roy* from *Rex*."

So far the printed attempts at explaining this term *ruell*. May I submit for the consideration of your readers, that it is related to the French adjective *rouillé*, rusty; used by Molière in the form *enrouillé*. Evidently this has affinity to *ruber*, *rouge*, and *red*. So that Tibbe's garland would be of tortoise-shell combs: and the saddle would be of a similar nature.

La Ryole is found as the name of the tenement occupied by Thomas le Bat (temp. Ed. III.?) Was this the sign of "The Comb," which is so often seen in the windows of our present shops?

J. W. P.

Curious Facts in Natural History (Vol. iii., pp. 166, 398.).

—In St. Lucia a coleopterous insect is found with a small plant growing directly from the back. I have myself seen it; but the plant consisted merely of the first two leaflets.

E. H. B.

Demerary.

Queries.

PAPAL BULLS, ETC.

A correspondent (S. P. H. T.) inquires, 1. Has there been any authorised collection of Papal Bulls, Breves, Encyclical Letters, &c., published since the beginning of the present century?

2. If not, has there been any authorised list of those addressed to the Roman Catholic Church in England or Ireland?

3. What bulls have, during the last century, been published against Bible Societies, &c., and where will I find *authorised* copies of them, more particularly those of Pope Pius VII., bearing date 29th June, 1816, and directed to the Primate of Poland; that of 18th September, 1819, against the circulation of the Scriptures in the Irish Schools; that of Leo XII., dated 3rd May, 1824, directed to the Irish clergy, which last is the latest I am acquainted with?

4. What authority is there for using the "Form of receiving Converts from the Church of Rome," as published by the British Reformation Society? Does it occur in *any* edition of the Book of Common Prayer?

5. What authority is there for the occasional services of 5th November, 30th January, 29th May, and 20th June? Some of these are, I am aware, specially directed by act of parliament; but the point upon which I wish to obtain information is, what the precise amount of obligation is that exists on the officiating minister to use or neglect the services in the absence of any specific directions on the matter from his Ordinary?

6. What authority is there for the use of the Gloria immediately after the minister's announcing the Gospel. No rubric *now* appears to recognise it?

7. At what period did the practice of playing "a voluntary" upon the organ during the collection of the alms originate? And what is the earliest record of the alms being collected after the communion service and before the sermon, and not after the prayer for the Church Militant?

S. P. H. T.

[The Editor will be happy to insert a reply pointing out sources of information. It is obvious that this is all which the limits of the work and the claims of other correspondents and readers will allow, when questions are proposed which contain many, and some of them difficult and disputed, points.]

SIR WALTER RALEIGH IN VIRGINIA.

I remember having read, some time ago, a statement in the public prints, to the effect that the popular belief, as to Sir Walter Raleigh having visited Virginia, was unfounded: the fact being, that he had projected such a voyage, and that the vessels equipped by him for that purpose had actually reached that country; but that the illustrious voyager himself was prevented by some circumstance

from conducting the expedition. This statement seemed to have been elicited by one of the subjects proposed for the decorations of the new Houses of Parliament, namely, "Sir Walter Raleigh landing in Virginia," and the idea was exploded with so much assurance that I had ceased to give it any credence. I find, however, in Hallam's *Literature of Europe*, 2nd edition, vol. iii. p. 179., that the fact of Sir Walter's having been in Virginia is relied upon by that historian, in the following passage:

"Harriott, the companion of Sir Walter Raleigh in Virginia, and the friend of the Earl of Northumberland, in whose house he spent the latter part of his life, was destined to make the last great discovery in the pure science of algebra."

Are there any data to support Mr. Hallam's opinion? Such is his general accuracy, that few would be disposed to question any statement deliberately put forward by him. In this instance, however, he may have adopted, without inquiry, the tradition which has been current for the last two hundred and fifty years.

HENRY H. BREEN.

St. Lucia, July, 1851.

Minor Queries.

134. *Wife of St. Patrick.*

—Will some one of your Irish contributors inform me when the 18th of March began to be celebrated in honour of S. Sheelagh, and the ground on which it is asserted that she was the wife of St. Patrick? I cannot find that St. Patrick was married; I am aware, however, that the silence of the usual authorities goes but a little way to disprove the popular tradition, as in days when women were but beginning to assume their present equable station, the mention of a wife at any time would be only casual.

W. DN.

135. *Meaning of Mop.*

—In the midland counties, servants are hired by the year in the following manner. On the several Tuesdays about Michaelmas, all who wish for engagements collect together at the different towns and villages, whither the masters resort for the purpose of hiring them. Those meetings which occur previous to Michaelmas day are called *statute-fairs*, while those which take place after that day are termed *mops*. Query, What is the derivation of this word? I have been told that the later assemblies are so called because they consist of the inferior servants who were not engaged before,—such as use a *mop* instead of sweeping clean and scouring. A friend conjectures that the name implies "an indiscriminate *mopping-up* of all sorts, the greater number of servants having gone before, and there being only a few left." I have no book to which I can refer for information on this subject.

J. H. C.

Adelaide, South Australia.

136. *William Lovel of Tarent Rawson.*

—In Hutchins's *Dorset*, vol. i. p. 91., is a pedigree of *Lovel* of Tarrant Rawson carried back to the later years of Hen. VII. In that genealogy the first person is described as *William Lovel* of Tarent Rawson, alias "*Antiocheston*." Under what circumstances did he come by this cognomen? Was he connected with any branch of the house of Yvery, and in what manner?

The arms are Barry nebulé of six O. and G., quartering 2. Arg. a cheveron G. between three ermines; 3. Erm. a cheveron sab.; 4. Erm. on a chief indented G. three ducks A.

Crest: a fox az. bezanté collared with a coronet O.

AMANUENSIS.

137. *Cagots*.

—Can any of your readers give me any information about the Cagots in the south of France, whose history has been written by Mons. Michel, in a work entitled *Sur les Races Maudits*? There seems to be great doubt about their origin; are they remnants either of the Saracens or the Paulicians? They still, I am told, exist in the deep Pyrenean vallies, and are a most degraded race. Is there any analogy between them and the Cretins of the Alps, with the difference, that in the Alps Cretinism is regarded with kindness, in the Pyrenees with scorn? If so, does this point to the existence of a Celtic and non-Celtic element in the races inhabiting the respective mountain chains? idiotcy being revered especially among the Celtic races. Then, as before the first French revolution, the Cagots had a particular place and door set apart for them in the churches. Does not this look like their being Paulicians forced into orthodoxy, or equally, perhaps, Saracen Christians, similar to the Jew Christians of Spain?

RUSTICUS.

138. *Execution under singular Circumstances*.

—I have read somewhere, but failed to "make a note of it" at the time, an anecdote of a singular occurrence at Winchester, to the following effect.

Some years ago a man was apprehended near —, in Hampshire, charged with a capital offence (sheep-stealing I believe). After being examined before a justice of the peace, he was committed to the county gaol at Winchester for trial at the ensuing assizes. The evidence against the man was too strong to admit of any doubt of his guilt; he was consequently convicted, and sentence of death (rigidly enforced for this crime at the period alluded to) pronounced. Months and years passed away, but no warrant for his execution arrived. In the interval a marked improvement in the man's conduct and bearing became apparent. His natural abilities were good, his temper mild, and his general desire to please attracted the attention and engaged the confidence of the governor of the prison, who at length employed him as a domestic servant; and such was his reliance on his integrity, that he even employed him in executing commissions not only in the city, but to places at a great distance from it. After a considerable lapse of time, however, the awful instrument, which had been inadvertently concealed among other papers, was discovered, and at once forwarded to the high sheriff, and by the proper authority to the unfortunate delinquent himself. My purpose is brief relation only; suffice it to say the unhappy man is stated under these affecting circumstances to have suffered the last penalty of the law.

Query, Can any of your readers inform me if this extraordinary story is founded on fact?

M. W. B.

139. *Rhynsault and Sapphira*.

—Whence did Steele derive the story of these personages in the *Spectator* (No. 491.)? A similar story is told by Jeremy Taylor, from John Chokier (*Duct. Dubit.*, book iii. chap. ii. rule 5. quæst. 3.); and that of Colonel Kyrke furnishes another parallel.

A TR.

140. *Mallet's Second Wife.*

—I should be glad to know in what year the second wife of Mallet died. It is stated that he returned from abroad shortly before his death, without his wife.

F.

141. *Proverb, what constitutes one?*

—What distinguishes a proverb, and is essential to its being such, as distinct from a short familiar sentence?

QUERE.

142. *Presant Family.*

—Any information respecting the ancient family of Presant, which is now nearly extinct, will oblige

SYLLA.

143. *The Serpent represented with a human Head.*

—Is Raphael the only painter who depicts the serpent with a *human* head tempting Eve? and what is the origin of the legend?

G. CREED.

144. *Dr. Wotton.*

—Is there any genealogical connexion between Sir Henry Wotton, the Venetian ambassador, and the Rev. Henry Wotton of Suffolk, father of the eminent Dr. William Wotton? And where is the pedigree to be found?

S. W. RIX.

Beccles.

145. Κολοβοδάκτυλος.

—In the seventh book of Origen's *Philosophumena*, chap. xxx., speaking of Marcion, the writer says:

"When therefore Marcion, or any of his currish followers, barks at the Demiurgus, bringing forward these arguments about the opposition of good and evil, they must be told that neither the Apostle Paul, nor Mark ὁ κολοβοδάκτυλος (*i.e.* the stump-fingered), promulgated any such doctrines; for nothing of the kind is found written in the Gospel according to Mark."

Is this epithet of Mark the Evangelist mentioned by any other of the fathers, or is it known how it originated? It is also to be remarked that Luke, not Mark, according to the received opinion, was the evangelist whose authority Marcion admitted, and whose text he tampered with to suit his own views. Is Origen supported in his account of the matter by any other writer?

C. W. G.

146. *Essex's Expedition to Ireland.*

—It is a matter of history that the celebrated Earl of Essex in Queen Elizabeth's time left London in March 1599, in command of a great expedition against Ireland, accompanied by a numerous train of nobility and gentry and other retainers.

At what office and to what quarter is one to apply for the purpose of discovering the *Muster Roll* made upon that occasion? There must be some documents, bills, letters, &c., relating to that expedition, the object of the querist being to ascertain whether his own name, "Jackson," can be found in any of these documents, as he has reason to think that any ancestor of his was one of the battle-axe guards in Dublin at that period.

J.

147. *Decretorum Doctor.*

—Is this title given at either of our universities? And what is its precise meaning? It not uncommonly occurs in the documents of the fifteenth and sixteenth centuries, and that it is not the same as Doctor of Laws may be concluded from the following examples:—The publication of a Pope's Bull by the Bishop of London, in the chapel of his palace in London on May 16, 1503, is stated to have been made "Præsentibus tunc ibidem, Venerabilibus viris, Willielmo Mors, et Johanne Younge, *Legum*, et Thoma Wodyngton, *Decretorum*, Doctoribus, Testibus," &c. (Rymer, xiii. 61.) And in Wood's *Athen.*, 1845 (ii. 728.), we find the same "Tho. Wodynton, decr. doctor," collated to the church of St Mary le Bow, on the resignation of the same "Joh'is Yonge, LL.D." on May 3, 1514.

Φ.

148. *Grimsdyke or Grimesditch.*

—If you do not deem the following Query too trifling for your most invaluable publication, I should be much obliged if you would insert it, in hopes some of your antiquarian correspondents may find something to say on the point.

From near Great Berkhamstead, Hants, to Bradenham, Bucks, about fifteen miles (I write from memory), runs a vallum or ditch, called Grimsdyke, Grimesditch, or the Devil's Dyke: it is of considerable boldness of profile, being in some places twelve or fourteen feet from the crest of the parapet to the bottom of the ditch; it keeps within two miles of the crest of the Chiltern Hills, and is passingly mentioned in Lipscombe's *History of Bucks*, and in the commencement of Clutterbuck's *History of Hertfordshire*. Are there other earthworks of the same name (Grimsdyke) in England; and what was their former use? This one in question, from its total want of flank defence, could hardly hold an enemy in check for long; nor does it seem to have been a military way connecting detached forts, as, though there are earthworks (camps) on either side, it seems to hold a tolerably straight course independent of them. And, lastly, about the etymology of the word:—I find, in Bosworth's *Anglo-Saxon Dictionary*, among a host of other meanings:

"GRIMA, ghost, phantom, witch, hag."

I may mention that there is the tradition about the dyke, common to most works of the sort, that it was "done by the Devil in a night."

NAUTICUS.

H.M.S. Phaiton, Lisbon, Aug 25.

149. *Passage in Luther.*

—In Luther's *Responsio ad librum Ambrosii Catharini*, where he attacks the confessional, he says:

"Cogit etiam papa peccata suarum legum confiteri—ad hæc tot peccatorum differentiis, speciebus, generibus, *filiabus*, *nepotibus*, *ramis*, circumstantiis," &c.

Were these expressions merely jocular, or have any papal canonists or casuists given the title of *filiæ*, *nepotes* or *rami* to offences deducible from the same root?

H. W.

150. *Linteamina and Surplices.*

—What is the meaning of *lintheamina* to be met with in the writings of ecclesiologists of a past age, and in the canonists?

At what date did the surplice first become an ecclesiastical vestment, and what are the differences discernible in the surplices of the Greek, Latin, and English churches?

J. Y.

Minor Queries Answered.

Ellrake or Hellrake.

—Can you kindly give me any information respecting the word *ell-rake* or *hell-rake* (for I know not which it is), an agricultural implement in frequent use? It is not alluded to in Todd's *Johnson's Dictionary*, 1818.

VASHTI.

[In Shropshire an *ell-rake* means a large rake: an *ellock-rake*, a small rake used for breaking up ant-hills.]

Francis Clerke.

—I have now before me a MS. in small folio on paper, pp. 225., besides index, entitled—

"Pro Curatorium ac Modus postulandi in Curijs et Causis ecclesiasticis Auct'at'e reverendissimi in Christi patris ac Dmi Dmi Johannis providentia Divina Cantuariensis Archiepiscopi, totius Anglie Prima^{ts} et Metropolitani Londoni celebrā que communiter Curie de Arcubus appellantur. Per Franciscum Clerke, Alme Curie de Arcubus procuren' collecta et edita."

Who was Francis Clerke; and was this collection ever published, and when?

S. P. H. T.

[Francis Clerke for about forty years practised the civil law in the Court of Arches, Admiralty, Audience, Prerogative, and Consistorial of the Bishop of London. In 1594, the Oxford University conferred upon him the degree of Bachelor of Civil Law. His principal work, entitled *Praxis curiæ Admiralitatis Angliæ*, passed through several editions. A short notice of the author will be found in Wood's *Athenæ*, i. 657. (Bliss), and a list of his other works in Watt's *Bibliotheca Britannica*.]

Nine Days' Wonder.

—Did any particular circumstance give rise to the saying, "A nine days' wonder?"

W. R. M.

[Most probably Kemp's *Nine Daies Wonder*, performed in a Morrice Daunce from London to Norwich, wherein euery dayes iourney is pleasantly set downe, to satisfie his friends the truth against all lying ballad-makers; what he did, how he was welcome, and by whome entertained.—This very curious tract has been reprinted by the Camden Society.]

Streso.

—In a book by Cradock on the Lives of the Apostles, published in 1641, I find many extracts and quotations in Latin from Streso in *Pref. de Vit. Apostolorum*. As I cannot find out or hear of such an author or book of Streso, could you inform one who he was?

LINCOLNIENSIS.

[The work is in the Bodleian Library: "Streso (Casp.), Anhaltinus, *Commentarius practicus in Actorum Apostolicorum per Lucam Evangelistam descriptorum capita priora sedecim*. 4to. Amst. 1650." The same library contains five other works by this author.]

The Willow Garland.

—In the Third Part of *King Henry VI.* (Act III. Sc. 3.), the Lady Bona sends this message to King Edward, uttered, as the messenger afterwards reports to him, "with mild disdain:"

"Tell him, in hope he'll prove a widower shortly,
I'll wear the willow garland for his sake."

As I find no note upon the willow garland in any edition of Shakspeare to which I have access, I should be obliged by having its meaning explained in your columns.

ARUN.

[The willow is considered as the emblem of despairing love, and is often associated with the yew and the cypress in the churchyard: hence, a garland made of the boughs of the willow was said to be worn by forlorn lovers. In *Much Ado about Nothing*, Act II. Sc. 1., Benedick says,—"I offered him my company to a willow-tree, either to make him a garland, as being forsaken, or to bind him up a rod, as being worthy to be whipped."]

Name of Nun.

—Can any of your readers inform me on what principle it is that the name of Nun (נ), the father of Joshua, is expressed in the Septuagint by νουῆ? I cannot help regarding the substitution of αῦῆ for נ as a very singular circumstance, more especially as it seems impossible to account for it by the conjecture that נ had been mistaken by the LXX for any letter that would be likely to be represented in Greek by ῆ. There are but few proper names in the Hebrew Scriptures that terminate in נ; and the way in which these are expressed in the Septuagint affords, I believe, no analogy to the above case.

QUIDAM.

Gillingham.

[The explanation usually given, after Gesenius, is that early copyists mistook NAYN for NAYH; and as some MSS. have Ναβί and Ναβή, it is supposed that later copyists thought that it was the Hebrew נביא.]

"M. Lominus, Theologus."

—Is there any printed account of this divine, or of a work on the Pelagian and Manichæan heresies which he published at Ghent in 1675?

S. W. RIX.

Beccles.

[The Bodleian Library contains a work by M. Lominus, entitled, *Blakloanæ Hæresis Historia et Confutatio*. 4to. Gandavi, 1675.]

Replies.

REMARKS UPON SOME RECENT QUERIES.

1. Without wishing to protract the discussion about *eisell*, let me tell the correspondent who questioned whether wormwood could be an ingredient in any palatable drink, that *crème d'absinthe* ordinarily appears with noyau, &c. in a Parisian restaurateur's list of luxurious cordials. Whilst that *eisell* was equivalent to wormwood is confirmed by its being joined with gall, in a page of Queen Elizabeth's book of prayers, which caught my eye in one of those presses in the library of the British Museum, where various literary curiosities are now so judiciously arranged, and laid open for public inspection.

2. As a decisive affirmation of what *rack* meant, where the word was the derivative of the Saxon *pecan*, your correspondents may accept the following from our martyr, Frith's, *Revelation of Antichrist*. He renders the second clause of 2 Peter ii. 17., "And racks carried about of a tempest;" and he immediately adds, "Racks are like clouds, but they give no rain."

3. In answer to MR. BREEN'S inquiry where there is any evidence from the writings of Gregory I., that he could be so shameless as to panegyrisé that female monster Queen Brunéhaut, he may read some of that Pope's flattering language in his letter addressed to her on behalf of that Augustine whom he sent to England, as contained in Spelman's *Concilia*. Epist. xvii. (*Brunichildæ, Reginæ Francorum*) begins as follows:

"Gratias omnipotenti Deo referimus, qui inter cætera pietatis suæ dona, quæ excellentiæ vestræ largitus est, *ita vos amore Christianæ religionis implevit, ut quicquid ad animarum lucrum, quicquid ad propagationem fidei pertinere cognoscitis, devota mente et pio operari studio non cessetis....* Et quidem hæc de Christianitate vestra mirentur alii, quibus adhuc beneficia vestra minus sunt cognita; nam nobis, quibus experimentis jam nota sunt, non mirandum est, sed gaudendum."—Spelm. *Concil.* p. 82.

And in Epist. xi.:

"Excellentia ergo vestra, *quæ prona in bonis consuevit esse operibus.*"—Id. p. 77.

4. The etymology of Fontainebleau (Vol. iv., p. 38.). I can only speak from memory of what was read long ago. But I think that in one of Montfaucon's works, probably *Les Monumens de la Monarchie Française*, he ascribed the origin of that name to the discovery of a spring amongst the sandy rocks of that forest by a hound called *Bleau*, to the great satisfaction of a thirsty French monarch who was then hunting there, and was thereby induced to erect a hunting-seat near the spring.

5. To A. B. C. (Vol. iv., p. 57.), your questionist about the marriage of bishops in the early ages of the Christian church, who has had a reply in p. 125., I would further say, that as we have no biographies describing the domestic life of any Christian bishop earlier than Cyprian, who belonged to the middle of the third century, it is only incidentally that anything appears of the kind which he inquires after. It would be enough for the primitive Christians to know that their scriptures said of *marriage*, that it was *honourable in all*; though such as were especially exposed to persecution, from

their prominence as officers of the church, would also remember the apostle's advice as good for the present distress, 1 Cor. vii. As, however, your correspondent asks what evidence there is that Gregory Nazienzen's father had children after he was raised to the episcopate, this fact is gathered from his own poem, in which he makes his father say to him, "Thy years are not so many as I have passed in sacred duties." For though these sacred duties began with his admission into the priesthood, he was made a bishop so soon afterwards, that his younger son, Cæsarius, must at any rate be held to have been born after the elder Gregory became a bishop.

Curiously enough, however, good evidence appears in the papal law itself, that the marriages of ecclesiastics were not anciently deemed unlawful. In the *Corpus Juris Canonici*, or *Decretum aureum*, D. Gratiani, Distinctio lvi. canon 2., which professes to be a rescript of Pope Damasus (A.D. 366-84), says:

"Theodorus papa filius [fuit] Theodori episcopi de civitate Hierosolyma, Silverius papa filius Silverii episcopi Romæ—item Gelasius, natione Afer, ex patre episcopo Valerio natus est. Quam plures etiam alii inveniuntur: qui de sacerdotibus nati apostolicæ sedi præfuerunt."

To which Gratian attaches as his own conclusion:

"Hinc Augustinus ait, *Vicia parentum Filiis non imputentur*."

Thereby throwing a slur on the said married bishops. But can. xiii., or Cænomanensem, of the same Distinctio, says:

"Cum ergo ex sacerdotibus nati in summos pontifices supra legantur esse promoti, non sunt intelligendi de fornicatione, sed de legitimis conjugiiis."

I will only add that Athanasius mentions a Bishop Euppsychius (Primâ contra Arianos) who was martyred in the reign of Julian, and that the historian Sozomen says of him (*Eccl. Hist.*, lib. v. ch. 11.), that when he suffered he had but recently married, καὶ οἶον ἔτι νυμφίον ὄντα.

H. WALTER.

DOMINGO LOMELYNE. (Vol. i., p. 193.)

As it is not to be met with in a regular way, your correspondent may be ignorant that Domingo Lomelyne was progenitor of the *extinct baronets* LUMLEY, his descendants having softened or corrupted his name into an identity with that of the great northern race of the latter name. They, however, retained different coat-armour in the senior line, bearing in common with many other English families of Italian, Champagne, and generally trans-Norman origin, "a chief." Guido de St. Leodigaro and one Lucarnalsus are the earliest heroes to whom I find it assigned; but Stephen, son of the Odo, Earl of *Champagne* (whence Fortibus, Earl of Albemarle), also brought it to England at a very early period; and thence from the Holderness annex of de Fortibus (in spite of the allegations in Wott. *Bar.*, i. 189.), Worsley perhaps copied it. The old Lumley or Lomelyne accounts connect it with the city of *Naples*. Your correspondent will find that Domingo Lomelyne was a *Genoese*, and of the *bedchamber* to Henry VIII.; that he maintained at his own cost, and commanded, a troop of horse at Boulogne in the same reign, and had a pension of 200*l.* per annum from Queen Elizabeth in 1560. If any of your correspondents can give me the junior ramifications of this family diverging from the son and grandson of Domingo, I shall feel much obliged, provided that James Lumley, living 1725, who

married Catherine Hodilow, can be satisfactorily linked with James, the son of Domingo. James and Martin were the family names, and the family was settled in London and Essex.

WM. D'OYLY BAYLEY.

PETTY CURY. (Vol. iv., pp. 24. 120.)

Having noticed in a recent number some rather various derivations of the name "Petty Cury," which one of the streets in Cambridge bears, I have been led to examine the word "Cury," and think that a meaning may be given to it, preferable to any of the three mentioned in your paper. The three to which I refer connect the word with "cook-shops," "stables," or some kind of a court-house ("curia"). The arguments brought forward in their favour either arise from the similarity of the words (as "Cury" and "écurie"), or from the probability that either cook-shops, stables, or a court-house existed in the vicinity of the street, whence it might derive its name. With regard to the name "Cury" being derived from the cook-shops in the streets, this seems to have little to do with the question; for supposing there are some half dozen such shops there (which I do not know to be the case), it proves little as to what was the number three or four centuries ago. Secondly, "Cury" derived from "écurie:" this seems unsatisfactory, for, as nothing whatever is known about our former fellows' horses, the argument in its favour simply consists in "Cury" being similar to "écurie." The third derivation is, that "Cury" is taken from "curia," a senate or court-house. This falls to the ground from the considerations, that if it were derived from it we might expect the name to be Parva Cury and not Petty Cury; and if it be derived from it, it implies that there was some larger court existing at that time, in contradistinction to which this was called "Parva Curia." But no larger one (as the advocate of the derivation allows) did exist, so that this derivation meets the fate of the former ones.

The most probable derivation of the word is from the French "curie," a *ward* or *district*, which certainly possesses this advantage over the three former ones, that the word is exactly the same as that of the street. The arguments in its favour are these:—In referring to a map of Cambridge dated A.D. 1574, I find the town divided into *wards*, with different names attached to them. These wards are all larger than "Petty Cury:" in the same map the name is spelt "*Peti Curie*" (*i.e.* small ward), both words being French or Norman ones, and the word "peti" being applied to it from its being smaller than any of the other wards. In former times it was not unusual to give French names to the wards and streets of a town, as may be seen any day in London, or even in Liverpool, which is comparatively a modern place. Thus the word from which I propose to derive the name "Cury" being the very same, and not requiring us to form any vague suppositions either about cook-shops, stables, or court-houses, I conclude, may be considered preferable to the three before mentioned.

W. F. R.

Trinity College, Sept. 1. 1851.

THE DAUPHIN. (Vol. iv., p. 149.)

The communication of your correspondent ÆGROTUS respecting the claims of an individual to be the Dauphin of France and Duke of Normandy, brought to my recollection pretensions of a similar nature made by a person who, about twenty years ago, was resident in London; and was a teacher of music,

as I was informed. This person introduced himself to me, in a French house of business, as the genuine Dauphin of France, the second son of Louis XVI. In justice to the *soi-disant* Dauphin, I should state that he did not bring forward his claims abruptly, but in the course of a conversation held in his presence, relating to the claims of another pretender to the same honours. The communicator of this important intelligence of a new rival to the contested diadem, urged his claims with so much plausibility, and pressed me so earnestly to pay him a visit—seeing that I listened to his impassioned statement with decorous patience and real interest—in order that he might explain the matter more fully and at leisure—that I went to his house in the New Road, where I saw him more than once. He told me that the woman, who had all her life passed as his mother, informed him on her death-bed that he was the Duke of Normandy, and had been confided to her charge and care; and that she was told to make her escape with him by his true mother, Marie Antoinette, when that unfortunate queen eluded the murderous pursuit of her assailants in the furious attack made on the Tuileries on the 10th of August, 1792. So impressed was I by the earnestness of the narrator, and the air of truth thrown around his story—knowing also that some doubts had been started as to the death of the Dauphin in the Temple—that I offered, being then about to visit Edinburgh, which was at that time the residence of the exiled monarch Charles X. and his ill-starred family, to be the bearer to them of any memorial or other document, which the claimant to the rights of Dauphin might wish to submit to that illustrious body. A statement was accordingly drawn up, and sent by me when in Edinburgh, not to Charles X., but to her royal highness the Duchess of Angoulême; who immediately replied, requesting an interview on my part with one of the noblemen or gentlemen of her household, whom I met; and was informed by him from her royal highness, that such communications exceedingly distressed her, in recalling a past dreadful period of her life; for that there was no truth in them, and that her brother, the Duke of Normandy, died in the Temple. With deep and sincere protestations of regret at having been the cause of pain to her royal highness, and made the unconscious dupe of either a knave or a fool, instead of bringing forward an illustrious unknown to his due place in history, I took my leave; and think this account ought to scatter for ever to the winds all tales, *in esse* or *posse*, of pretended Dauphins of France and Dukes of Normandy.

I should mention, that in my interview with the *soi-disant* Dauphin, he showed me various portraits of Louis XVI., and then bade me look at his own features, in every attitude and form, and say if the likeness was not most striking and remarkable. I could not deny it; and in truth was so impressed with his whole account, that I began to look upon the humble individual before me with something of the reverence due to majesty, shorn of its glories.

J. M.

P.S.—I now recollect that the name of this pretended Dauphin was Mevis, and that he was said to have been seen in Regent Street by a friend of mine about five years ago; and may, for aught I know, be still living.

Oxford, Sept. 2.

Replies to Minor Queries.

Visiting Cards (Vol. iv., p. 133.).—In answer to your 87th Query, it may serve in part to help to show "when visiting cards first came into use," by informing you that about six or eight years ago a house in Dean Street, Soho, was repaired (I think No. 79.), where Allison and Co., the pianoforte makers, now of the Quadrant, formerly resided; and, on removing a marble chimney-piece in the front drawing-room, four or five visiting cards were found, one with the name of "Isaac Newton" on it. The names were all *written* on the back of common playing cards; and it is not improbable that one or

more may still be in the possession of Mr. Allison, 65. Quadrant. The house in Dean Street was the residence of either Hogarth or his father-in-law.

A. MITE.

Sardonic Smiles (Vol. iv., p. 18.).

—I beg to refer such of your readers as take an interest in the discussion of "Sardonic Smiles" to a treatise or memoir on the subject, by a learned scholar and antiquary in the St. Petersburg Transactions for 1851. The title of the memoir is as follows: *Die Talos-Sage und das Sardonsche Lachen. Ein Beitrag zur Geschichte Griechischer Sage und Kunst, von Ludwig Mercklin*. The memoir is also printed separately, from the *Mémoires des Savants Etrangers*.

J. M.

Oxford, August 4.

Darby and Joan (Vol. iii., p. 38.).

—As no one has answered your correspondent by referring him to a copy of this ballad, I have great pleasure in calling his attention to *A Collection of Songs, Moral, Sentimental, Instructive, and Amusing*, 4to. Cambridge, 1805. At p. 152. of this volume, the "pleasant old ditty" of "Darby and Joan" is given at length, accompanied with the music. The editor, the Rev. James Plumptre, M.A., tells us that it is "attributed to Matthew Prior." As this book is somewhat difficult to procure, your correspondent is welcome to the loan of my copy.

EDWARD F. RIMBAULT.

Marriage of Bishops (Vol. iv., pp. 57. 125.).

—In reference to the inquiry of your correspondent A. B. C., for any instances of bishops and priests who, during the first three centuries, were married after ordination, I may suggest that the Council of Nice in 325 declared it to be then "*an ancient tradition* of the Church that they who were unmarried when promoted to holy orders should not afterwards marry."—Socrates, *Hist. Eccl.*, lib. i. cap. ii.; Sozomen, *Hist. Eccl.*, lib. i. c. xxiii.

May not the proper translation in the text which he quotes, 1 Cor. ix. 5., be "woman," instead of "wife;" and might not the passage be more accurately rendered by the expression "sister-woman?" Clemens Alexandrinus says (*Stromat.*, lib. iii. edit. Poterii, Venet. 1757, tom. i. p. 526.): "Not as wives but as sisters did the women go round with the apostles:" and see also Matt. xxvii. 55., Mark xv. 41., and Luke viii. 3.

DORFNAIG.

Winifreda (Vol. iii., p. 27.).

—LORD BRAYBROOKE has furnished your readers with a very curious list of the various printed forms in which, at different times, this popular song has been given to the world; but he has omitted one which I think ought to be placed on record. I allude to a copy contained in the third number of *The Foundling Hospital for Wit*, a rare miscellany of "curious pieces," printed for W. Webb, near St. Paul's, 8vo. 1746 (p. 23.). This work was printed in numbers, at intervals, the first bearing date 1743; and the sixth, and last, 1749. My copy is particularly interesting as having the blank names filled up in a cotemporary hand, and the authors' names, in many cases, added. The song of *Winifreda* is assigned to

"Mr. G. A. Stevens;" so that, after all, the Edinburgh reviewer may have confounded *George Steevens*, the "commentator," with his earlier and equally facetious namesake, *George Alexander*.

George Alexander Stevens was born (if a MS. obituary in my possession may be relied on) "in the parish of St. Andrew's Holborn, 1710." He died (according to the *Biographia Dramatica*) "at Baldock in Hertfordshire, Sept. 6, 1784."

EDWARD F. RIMBAULT.

George Chalmers (Vol. iv., 58.).

—The printed books and MSS. of the late George Chalmers were disposed of by auction in 1841 and 1842 by Mr. Evans of Pall Mall. The particular MS. inquired after by J. O. occurs in the third part of the printed sale catalogue, and is numbered 1891. It is thus described by Mr. Evans:

"CHALMERS'S BIBLIOGRAPHIA SCOTICA POETICA, OR NOTICES OF SCOTTISH POETS AND THEIR WORKS, from 1286 to 1806, 4 vols. Chalmers's *Notices of the Scottish Poetry, Drama, and Songs*, 2 vols., together 6 vols.

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Lot 1894. is also highly interesting. It is described as—

"RITSON'S BIBLIOGRAPHIA SCOTICA, 2 vols. Unpublished.

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My catalogue of Chalmers's library, unfortunately, has not the prices or purchasers' names; and the firm of the Messrs. Evans being no longer in existence, I have no means of ascertaining the present locality of the above-mentioned MSS.

EDWARD F. RIMBAULT.

The Three Estates of the Realm (Vol. iv., p. 115.).

—W. FRASER is quite right in repudiating the *cockney* error of "Queen, Lords, and Commons" forming the "three estates of the realm." The sovereign is *over* the "realm;" a word which obviously designates the persons *ruled*. W. F. however does not exactly hit the mark when he infers, that "the Lords, the Clergy *in convocation*, and the Commons" are the "three estates." The phrase "assembled in Parliament" has no application to the Convocation; which moreover does not sit at Westminster, and was not exposed to the peril of the gunpowder plot. The three estates of the realm are the three orders (*états*) into which all natural-born subjects are legally divided: viz. the *clergy*, the *nobility*, and the *commonalty*. They are represented "in Parliament" by the "Lords Spiritual," the "Lords Temporal," and the "Commons" (elected by their fellows). The three estates thus meet their sovereign in the "chamber of Parliament" at the opening of every session; and there it was that the plot was laid for their destruction.

W. F. is no doubt aware that originally they all *deliberated* also together, and in the presence of the sovereign or his commissioners: and though, for the freedom of discussion, the sovereign now

withdraws, and the Commons deliberate in a separate chamber (leaving the chamber of Parliament to be used as "the House of Lords," both Spiritual and Temporal), yet to this day they all reassemble for the formal *passing* of every act; and the authority of all three is recited by their proper names in the preamble.

The first and second estates are not fused into one, simply because they continue to deliberate and vote together as all three did at the first.

The *Convocation* of the Clergy was altogether a different institution, which never met either the sovereign or the Parliament: but their order was *represented* in the latter by the prelates. It is another mistake (therefore) to think the Bishops sit in the House of Lords as *Barons*.

CANONICUS EBORACENSIS.

"*You Friend drink to me Friend*" (Vol. iv., p. 59.).

—When I was a boy, about sixty-five years ago, Mr. Holder (a surgeon of some eminence at that time) was a frequent visitor at our house, and much amused us by several catches in which (under his instruction) we delighted to join; and among which was—

"I friend, drink to *thee*, friend, as *my* friend drank to *me*;
I friend, charge *thee*, friend, as *my* friend chargēd *me*;
Sō dō *thou*, friend, drīnk tō *thy* friend, as *my* friend drank to *me*,
For the more we drink liquor the merrier are we."

R. S. S.

56. Fenchurch Street.

Broad Halfpenny Down (Vol. iv., p. 133.).

—*Broad halpeny*, or *broad halfpenny*, signifies to be quit of a certain custom exacted for setting up tables or boards in fairs or markets; and those that were freed by the King's charter of this custom, had this word put in their letters-patent: by reason whereof, the freedom itself (for brevity of speech) is called *broad halfpenny*. (*Les Termes de la Ley*.) Hence the origin of "Broad-halfpenny Down."

FRANCISCUS.

Whence the name I cannot say, but would just note the fact, that sixteen miles from London, on the Brighton railway, is a breezy upland called *Farthing Down*. The country folk deem it a sufficiently famous place, and one told me "that was once London;" meaning, a town stood there before London was built. It is a locality well known to those who hunt with the Croydon pack.

P. M. M.

Horner Family (Vol. iv., p. 131.).

—Is it true that the following rhymes apply to one of the Horners of Mells?

"Little Jack Horner
Sat in a corner,
Eating a Christmas pie,
He put in his thumb,
And pulled out a plum,
And said what a good boy am I."

The plum being 100,000*l*. I have been told a long story on the matter by Somersetshire people.

P. M. M.

The Man of Law (Vol. iv., p. 153.).

—The lines so felicitously quoted by Mr. Serjeant Byles at a recent trial were thus given in *The Times*:

"The man of law who never saw
The way to buy and sell,
Wishing to rise by merchandise,
Shall never speed him well."

This version is rather nearer the original than that of your correspondent MR. KING, who avowedly writes from memory. The author of the lines was Sir Thomas More. They are thus given in "*A Mery Jest how a Sergeant would learn to play the Freere*. Written by Maister Thomas More in hys youth:"

"A man of lawe that never sawe
The wayes to bye and sell,
Wenyng to ryse by marchaundyse,
I praye God spede hym well!"

My quotation is at second-hand from Warton's *History of English Poetry*, sect. xliii.

C. H. COOPER.

Cambridge, August 30. 1851.

[We are also indebted to T. LAWRENCE and BARTANUS for replying to this Query. The latter adds, "The poem is given at length in the History of the English Language prefixed to the 4to. edition of Johnson's *Dictionary*."]]

Riddle (Vol. iv., p. 153).

—The riddle (query *rebus*?) for the solution of which your correspondent A. W. H. inquires, may be found printed in vol. i. pp. 109, 110. of the poems of Dr. Byrom, well known as the author of the "Pastoral," inserted with much commendation by Addison in the 8th volume of the *Spectator*, and the supposed inventor of the universal English short-hand. The author of the rebus seems to have been then unknown (1765), and it is said to have been "commonly ascribed to Lord Chesterfield." Whether this was asserted in jest, does not appear: but Dr. Byrom, to whom application for a solution had been made, in the course of his reply, given in his own peculiar style, has the following passage, which may be a guide to those who may now seek to arrive at the mystery:—

"Made for excuse, you see, upon the whole,
The too great number of words, that poll
For correspondency to ev'ry line;
And make the meant one tedious to divine:
But we suspect that other points ambiguous,
And eke unfair, contribute to fatigue us.

For first, with due submission to our betters;

What antient city would have eighteen letters?
Or more?—for, in the latter lines, the clue
May have *one* correspondent word or two:
Clue should have said, if only one occur'd,
Not correspondent *words* to each, but *word*.

From some suspicions of a bite, we guess
The number of the letters to be less;
And, from expression of a certain cast,
Some joke, unequal to the pains at last:
Could you have said that all was right and clever,
We should have try'd more fortunate endeavour.

*It should contain, should this same JEU DE MOTS,
Clean-pointed turn, short, fair, and >A PROPOS;
Wit without straining; neatness without starch;
Hinted, tho' hid; and decent, tho' tis arch;
No vile idea should disgrace a rebus—
SIC DICUNT MUSÆ, SIC EDICIT PHÆBUS."*

T.W. (1)

[We are also indebted to R. P. for a similar Reply.]

Speculative Difficulties (Vol. iii., p. 477.).

—As L. M. M. R. is not certain as to the title and author of the book he inquires about, perhaps he may find it under the title of *The Semi-sceptic, or the Common Sense of Religion considered*, by the Rev. J. T. James, M.A.; London, 1825. This is a very unpretending but very beautiful work, of some 400 pages. The author died Bishop of Calcutta.

O. T. DOBBIN.

St. Paul (Vol iii., p. 451.).

—In answer to EMUN, allow me to name a *Life of St. Paul* by the Rev. Dr. Addington, an eminent dissenting minister of the close of the last century; a work on the life and epistles of St. Paul by Mr. Bevan, a member of the Society of Friends; and two books by Fletcher and Hannah More on the character of the same apostle.

O. T. D.

Commissioners on Officers of Justice in England (Vol iv., p. 152.).

—I can give no information respecting the commission of July 27, 1733; but on June 2, 8 GEO. II. [1735], a commission issued to Sir William Joliffe, Knt., William Bunbury, Simon Aris, Thomas Brown, Thomas De Veil, Esquires, and others, for inquiring into the officers of the Court of Exchequer, and their fees, "and for the other purposes therein mentioned." I imagine this commission

also extended to other courts. The names of the jurors impannelled and sworn as to the Court of Exchequer, July 9, 1735; their oath, presentment, and six schedules of fees, are given in Jones's *Index to the Originalia and Memoranda Records* (London, fo. 1793), vol. i. Preface, xxxiii.-xliv.

C. H. COOPER.

Cambridge.

Noble and Workhouse Names (Vol. iii., p. 350.).

—I can enumerate several old names, some Anglo-Saxon, in the parishes of Burghfield and Tylchurst, in Berks, belonging to the peasantry, many of whom may have been gentry in bygone years; such as Osborne, Osman, Seward, Wolford, Goddard, Woodward, Redbourne, Lambourne, Englefield, Gower, Harding, Hussey, Coventry, Avery, Stacy, Ilsley, Hamlin, Pigot, Hemans, Eamer, and Powel. A respectable yeoman's widow, whose maiden name was Wentworth, told me she was of the same family as Sir Thomas Wentworth, Earl of Strafford, beheaded in Charles's reign.

JULIA R. BOCKETT.

Southcote Lodge.

Poulster (Vol. iv., p. 152.).

—The meaning of this word is undoubtedly as D. X. surmises. The original term was *upholder*, which is still in occasional use; next *upholster*; and, thirdly, *upholsterer*. In Stowe's *Survey of London*, it appears in the second form: and so also *poulter*, which still exists as a surname. "Mr. Richard Deakes, Uphoulster," was buried at St. Dunstan's in the West, London, in 1630. (*Collectanea Topog. et Geneal.*, v. 378.) It would be worth inquiry *when* the incorrect duplication of termination first produced our modern words *upholsterer* and *poulterer*? Mr. Pegge remarks, that "Fruiterer seems to be equally redundant;" and that "cater-er is written *cater* in the margin of the *Life of Gusmand de Alfarache*, folio edition, 1622, p. 125. (*Anecdotes of the English Language*, edit. Christmas, 1844, p. 79.)"

J. G. N.

Judges styled Reverend (Vol. iv., p. 151.).

—Your correspondent. F. W. J., before he receives an answer to his Query, "When did the judges lose the title of Reverend and Very Reverend?" must first show that they ever bore it. By the example he quotes he might as well argue that they bore the title of "Très Sages," as that of "Très Reverend." The fact is, that, *as a title*, it was never used by them, the words quoted being nothing more than respectful epithets applied to eminent men of a past age, by the editors or publishers of the work.

I very much doubt also whether the style of "The Honorable" is properly given to the judges.

It would be curious to trace the commencement of the practice of addressing a judge on the bench as "My Lord." In the Year Books are numerous instances of his being addressed simply "Syr." Off the bench the chief alone is entitled to the designation "My Lord," and that address can be properly given to the puisne judges only when they are on the circuit, and then because they are acting under a special royal commission.

EDW. FOSS.

The Ring Finger (Vol. iv., p. 150.).

—In the ancient ritual of marriage, the ring was placed by the husband on the top of the thumb of the left hand, with the words "In the name of the Father;" he then removed it to the forefinger, saying, "and of the Son;" then to the middle finger, adding, "and of the Holy Ghost;" finally, he left it as now, on the fourth finger, with the closing word "Amen."

R. S. H.

Morwenstow.

Miscellaneous.

NOTES ON BOOKS, SALES, CATALOGUES, ETC.

The name of Dr. Freund is probably known to many of our readers as that of the most profound lexicographer of the present day, so far as the Latin language is concerned. His larger Latin-German Lexicon is as remarkable for its philosophical arrangement as for the philological acquirements of its author; and of that important and valuable work a translation, or rather an adaption, is now before us, in one handsome octavo volume, under the title of *A Copious and Critical Latin-English Lexicon, founded on the larger German-Latin Lexicon of Dr. William Freund: with Additions and Corrections from the Lexicons of Gesner, Facciolati, Scheller, Georges, &c.* By E. A. Andrews. LL.D., &c. Dr. Andrews and his assistants have executed their respective portions of the work in a most able manner; and the book, which in its getting up is as creditable to American typography as its editing is to American scholarship, will, we have no doubt, meet, as it deserves, with a most extensive sale in this country.

The Churchyard Manual, intended chiefly for Rural Districts, by the Rev. W. H. Kelke, is a little volume published for the purpose of promoting the improvement of rural churchyards, by giving them a more truly Christian character. It is illustrated with some extremely pleasing and appropriate monumental designs, and contains a judicious selection of epitaphs, and is indeed altogether well calculated to accomplish the good end at which the author aims.

Archæological Guide to Ely Cathedral; prepared for the Visit of the Bury and West Suffolk Archæological Institute, Sept. 1851, is a most useful little tract, calculated not only to increase the interest of the members of the Bury Institute, in their visit to the venerable pile which it describes, but furnishing just the heads of information which future visitors will require, and therefore likely to outlast the temporary object for which it has been so ably compiled.

CATALOGUES RECEIVED.—C. Hamilton's (22. Anderson's Buildings, City Road) Catalogue of Books, Portraits, Original Drawings, Local, Historical, and other important Manuscripts; W. Miller's (3. Upper East Smithfield) Catalogue Part 38. of a Collection of Books in the various Branches of Literature.

BOOKS AND ODD VOLUMES WANTED TO PURCHASE.

No. 3 of SUMMER PRODUCTIONS or PROGRESSIVE MISCELLANIES, by Thomas Johnson. London, 1790.

HISTORY OF VIRGINIA. Folio. London, 1624.

THE APOLOGETICS OF ATHENAGORAS, Englished by D. Humphreys. London, 1714. 8vo.

BOVILLUS DE ANIMÆ IMMORALITATE, ETC. Lugduni, 1522. 4to.

KUINOEL'S NOV. TEST. Tom. I.

THE FRIEND, by Coleridge. Vol. III. Pickering.

* * Letters, stating particulars and lowest price, *carriage free*, to be sent to MR. BELL, Publisher of "NOTES AND QUERIES," 186. Fleet Street.

Notices to Correspondents.

C. W. *If our correspondent lives, as we trust he will, to see our hundredth Volume, we feel assured that what he now considers a blemish he will then estimate very differently.*

F. S. *The allusion to which our correspondent refers, is to a well-known stanza:*

"The Sun's perpendicular heat
Illumines the depth of the sea,
And the fishes, beginning to sweat,
Cry, 'Bless us how hot we shall be.'"

DESPECTUS. *Such of the various matters suggested in our correspondent's voluminous communication as are calculated for insertion in our columns shall be introduced as opportunities offer.*

RADIX. *A diamond Latin Dictionary, by Riddle, has, we believe, been published by Messrs. Longman.*

G. M. P., *who inquires as to the origin and proper name of the character "&" (and-per-se-and, and-by-itself-and), is referred to our 2nd Vol. pp. 250. 284.*

E. A. T. *Das Knaben Wunderhorn has never been translated into English. We have no doubt, however, but that translations have been made of many of the pieces contained in it.*

LLEWELLYN will find a note addressed to him at our Publisher's.

REPLIES RECEIVED.—*School of the Heart—John of Lilburne—Absalom's Hair—Ray and Wray Families—Meaning of Deal—Nightingale and Thorn—The Termination "-ship"—Repudiate—Swinhope—Unlucky for Pregnant Women to take an Oath—The Man of Law—Prestegyn—Queen's Messengers—Murderers buried in Cross Roads—Sword-blade Note—Petty Cury—Domesday Book of Scotland—Elision of letter V.—Names first given to Parishes—Dole-bank—The Dauphin—Aglá—Coins of Constantius II.—Corpse passing makes a Right of Way—Poulster.*

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September, 1851.

J. G. COCHRANE, Secretary and
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Transcriber's Note: Original spelling varieties have not been standardized.

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